KAHA PRIVACY POLICY

Version : 1.13

THIS PRIVACY POLICY IS AN ELECTRONIC RECORD AND ELECTRONIC CONTRACT BETWEEN YOU (**"You/you"**, **"Your/your"**), AND KAHA PTE LTD, 29, MEDIA CIRCLE, #05-14, ALICE @MEDIAPOLIS, SINGAPORE - 138565 ("**KaHa**", "**We/we**", "**Our/our**", "**Us/us**") FORMED UNDER THE PROVISIONS PERTAINING TO ELECTRONIC DOCUMENTS / RECORDS IN VARIOUS STATUTES AS AMENDED FROM TIME TO TIME. THIS DOCUMENT DOES NOT REQUIRE ANY PHYSICAL, ELECTRONIC OR DIGITAL SIGNATURE.

BY DOWNLOADING, INSTALLING, COPYING, ACCESSING, CLICKING ON 'I AGREE' OR OTHERWISE USING OUR PRODUCTS OR SERVICES (as defined below), YOU (1) INDICATE THAT YOU ARE OF LEGAL CONTRACTUAL AGE, AND (2) YOU CONFIRM THAT YOU HAVE THE LEGAL CAPACITY TO EXECUTE THIS PRIVACY POLICY OR THAT YOU HAVE EXECUTED IT THROUGH A LEGAL GUARDIAN OR LEGAL REPRESENTATIVE (as the case may be), AND (3) YOU AGREE TO CONTRACT ELECTRONICALLY WITH KAHA, AND (4) THAT YOU HAVE READ, UNDERSTOOD, AND CONSENTED TO THE TERMS CONTAINED AND THE PRACTICES AND POLICIES OUTLINED IN THIS PRIVACY POLICY, AND (5) THAT YOU PARTICULARLY CONSENT TO THE COLLECTION, PROCESSING, COPYING, BACKUP, STORAGE, TRANSFER AND USE OF YOUR DATA BY KAHA AND ITS ASSOCIATED PARTIES OR ITS CONTRACTORS / SUB-CONTRACTORS DIRECTLY OR INDIRECTLY, IN, FROM AND TO THE UNITED STATES, EUROPE, SINGAPORE, INDIA OR OTHER COUNTRIES OR JURISDICTIONS POTENTIALLY OUTSIDE OF YOUR OWN.

IF YOU HAVE EXECUTED THIS PRIVACY POLICY, BREACHING THE FOREGOING CLAUSES OR IF YOU DO NOT AGREE TO THE TERMS CONTAINED HEREIN, DO NOT DOWNLOAD, INSTALL, COPY, ACCESS OR OTHERWISE USE THE PRODUCTS OR SERVICES AND DELETE ALL COPIES OF THE SOFTWARE.

This Privacy Policy is effective upon your acceptance of the same (directly or indirectly as mentioned above). Please note 'COVE®' and 'COVENET®' are registered brands of KaHa.

KaHa takes Your privacy very seriously and care about how Your personal information is used and shared. Please read this Privacy Policy carefully as it details the information we collect from you, how we use and share Your information, how you can control the use of your personal data, and how your personal data is protected when you use our products and services. We do not sell or trade your personally identifiable information.

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1. **Definitions**

1.1 **"Your Personal Data"** means any identified or identifiable information relating to You.

1.2 **"Your Nominees"** means (1) an individual nominated by You in one or more of our Products or Services and includes, without limitation, Your fitness buddies, parents, family members, and guardians, and (2) the individuals and organisations that You have consented to share Your information with in one or more of our Products or Services, and includes, without limitation, healthcare providers, doctors, hospitals etc. who remotely monitor You.

1.3 **"Products and/or Services"** means any product or service being offered by KaHa and includes without limitation KaHa's websites, mobile applications, dashboards & software that are licensed by KaHa to You under a separate license agreement or terms & conditions.

1.4 Words and expressions used and not defined hereunder shall have the same meaning as mentioned in the relevant licensing agreement.

2. **What Information is collected about You**

2.1 Information you provide Us directly/indirectly - Generally, You share information directly or indirectly with us in the following ways:

a. When you submit any forms, including but not limited to, customer inquiry forms, gift claiming forms, pre-registration forms or other forms relating to any of our Products and/or Services; or when you register for certain services on our Products and/or Services, or elsewhere with our Associated Parties or other partners, access or use functions, services or features provided by the Products and/or Services; or when you enter into any agreement or provide other documentation or information in respect of your interactions with us, or when you use our Products or Services; or when you interact with our staff, including customer support staff, for example, via website, telephone calls (which may be recorded), letters, fax, face-to-face meetings, social media platforms and emails; or when you request that we contact you or request that you be included in an email or other mailing list; or when you respond to our promotions, initiatives or to any request for additional Personal Information; or when you are contacted by, and respond to, our marketing representatives and customer support team; or when we seek information about you and receive your Personal Data in connection with your relationship with us; or when you submit an employment application or when you provide documents or information including your resume and/or CVs in connection with any appointment as an officer, director, representative or any other position; or when you submit your Personal Data to us for any other reasons.

In all such circumstances you may provide Your Personal Data such as name, contact number, postal address, email address, username, height, weight, profile photo, Your location data (if you allow access), including, without limitation, the real-time geographic location of Your device that is used along with the Product or Service. Further, all Users of our Products and Services are part of the COVENET® Network, and during an alert by a COVENET® Network User or for provision of certain features and services, we may use your wearable device to collect publicly broadcasted technical data of other devices near You.

b. If you register to our Products or Services through a third-party website or services such as, without limitation, Google or Facebook, then We may receive Your images/photos and other information available about You on such third-party website. We may also receive information about you from publicly and commercially available sources (as permitted by law). We may also receive information about you from our eco-system and commercial partners, and third-party social networking services when you choose to connect or register with those services. Further, please note where you have permitted such third-parties (including without limitation Google and/or Facebook and/or WhatsApp) to

collect Your usage and other data from other mobile applications, then such data shall be collected by them from our Application as well. KaHa is not responsible for the data collected or the privacy practices of such third-parties and Your use of such third-parties services is subject to the terms of use, privacy policies and any additional guidelines prescribed by such third-parties.

c. Wherever You have nominated or given consent, some or all of your Personal Data may be visible to Your Nominees. Where You have nominated one or more of Your Nominees, You provide us Your Nominee's details such, without limitation, Your Nominee's name, phone number, email-id etc. If you provide us with any Personal Data relating to Your Nominees, by submitting such information to us, you represent to us that you have obtained the consent of Your Nominee(s) to provide us with their Personal Data for the respective purposes. Using certain features in our Products and/or Services, You may choose to share messages, including without limitation, on one or more social media platforms. KaHa has access to all messages that are generated or shared using our Products or Services.

d. You should ensure that all Personal Data submitted to us is complete, accurate, true and correct. Failure on your part to do so may result in our inability to provide you with the products and services you have requested, or delays in providing you with products and services you have requested or processing your requests.

2.2 Information that is automatically collected when you visit/use our Products or Services - When you download and/or visit certain Products or Services, certain information may be collected automatically, which includes Your device's Internet Protocol (IP) Address, Your browser type and operating system, Your network service provider, Web pages and links you visit, advertisements you view. When you browse our website, you generally do so anonymously but please see paragraph below for information on cookies and other technologies which we have implemented. Our Products or Services may also use Cookies and similar technologies.

3. **How we use the information we collect**

3.1 General - KaHa may use the information collected from you (a) to register You or Your device for one or more Products or Services; (b) to administer, process or fulfil a Product or Service You request or consent to, (c) to contact You and provide to You promotions or gifts You have enrolled into; (d) for providing customer service and support (including, but not limited to, customer relationship management, processing/responding to enquiries, processing your request and emails, processing and settlement of any bills, facilitating, arranging and providing notifications/reminders of your appointments etc., contacting you, providing follow-up calls, providing you with administrative support), (e) to provide personalised services, customized content, and make recommendations based on Your past activities on our Products or Services, (f) to enforce our rights arising from any contracts entered into between You and us; and (g) purposes which are reasonably related to the aforesaid.

3.2 If you submit an application to us as a candidate for employment or internships, We will use your Personal Data for, (a) conducting interviews; (b) processing your application (including but not limited to pre-recruitment checks involving your qualifications and facilitating interviews); (c) obtaining references and for background screening; (d) assessing your suitability for the position applied for; (e) enrolling successful candidates as our employees and facilitating human resource planning and management (including but not limited to preparing letters of employment, name cards and building access passes); and/or purposes which are reasonably related to the aforesaid.

3.3 If you are existing employee of KaHa, we process Your Personal Data that are necessary for (a) management, administration and termination of your employment with us, including without limitation, for inducting you into the company, providing remuneration, appraisals & performance evaluations, employee engagements, internal testing of Products and Services (should You choose to be a part of it) providing tools and software, for Your travel, accommodation and Visa requirements, administering termination processes etc.; (b) for company's business continuity purposes; (c) for conducting analytics and research for human resource planning and management, and for us to review, develop, optimise and improve work-related practices, environment and productivity; (d) compliance with any applicable rules, laws and regulations, codes of practice or guidelines or to assist in law enforcement and investigations by relevant authorities (including but not limited to disclosures to regulatory bodies, conducting audit checks or surveillance and investigation); (e) any other purposes relating to any of the above.

3.4 Marketing – We may also use your information to provide or market to you about our or our Associated Party(ies)'s existing and/or new products or services, including but not limited to, updates, offers, special offers, newsletters, promotions, service upgrades, loyalty, reward, and marketing programmes and/or membership programmes (including, without limitation, sending of updates, event invitations, newsletters and marketing and promotional information to you pursuant to such programmes), which may be relevant to your preferences and profile, and by all possible modes of communication, if you have provided your prior consent or we are otherwise permitted to do so under applicable law.

By downloading, installing, copying, accessing, clicking on 'I agree' or otherwise using our Products and/or Services, You consent that We may reach out to you via emails or other communication to offer you promotions, coupons, surveys, upgrades, updates, service and support related assistance. Your consent to receive communications through one channel (such as email) also allows us to contact you through other electronic channels (such as SMS or WhatsApp) for the same purposes and you willingly agree and acknowledge for the opt-in/subscribed models of such email/WhatsApp etc.

3.5 Statistics and Research - We may use your information for conducting market research; or creating user group profiles or segment data or to otherwise create anonymous, aggregated statistics about the use of our Products and/or Services; or aggregating and analysing customer profiles and data to determine patterns and trends, understanding and analysing customer behaviour, location, preferences and demographics; or purposes which are reasonably related to the aforesaid.

Third Party Service Providers: We work with third parties who provide services to us. We may share your Personal Data with such third parties, as may be necessary, for the purpose of enabling such third parties discharge the provision of such services. These third-party service providers may be located within or outside India, subject to permitted data transfers under applicable law. Your Personal Data may also be shared with the manufacturer of the products ordered/ purchased by you or with entities responsible for delivering the products ordered / purchased by you. All such third parties are contractually bound to protect your information and use it only for specified purposes.

3.6 Product or Services Improvement - We may use your information to improve and enhance our existing products, services and Applications and develop new offerings, recommendations, advertisements and other communications and learn more about customers' preferences in general.

3.7 Publish your reviews, comments and content - Where you upload or otherwise make available publicly Your reviews, comments or content to or about our Products or Services, then KaHa may link to, publish or publicize these materials elsewhere including in our own advertisements.

3.8 Furthermore, where permitted under applicable laws, KaHa may also collect, use and disclose your Personal Data for the following "Additional Purposes": (a) taking or filming photographs and videos for corporate publicity or marketing purposes, and featuring your photographs and/or testimonials in our articles and publicity materials; (b) organising roadshows, tours, campaigns and promotional or events and administering contests and competitions; (c) matching Personal Data with other data collected for other purposes and from other sources (including third parties) in connection with the provision or offering of Products or Services; (d) In relation to particular services or in your interactions with us, we may also have specifically notified you of other purposes for which we collect, use or disclose your Personal Data. If so, we will collect, use and disclose your Personal Data for these additional purposes as well, unless we have specifically notified you otherwise; (e) any other purposes relating to any of the above.

4. **To whom do we disclose your Personal Data**

4.1 Your Nominees and other users – Where You have opted or consented to use certain features that require You to nominate some people as Your fitness buddy, guardian etc., then Your Nominees are intimated of the same and they can view Your name, profile photo and Your contact details at all times. Where You have opted to use the safety notification feature on the Application, then upon Your raising of an alarm, Your guardians will be able to track Your location in real-time. Your guardian will also have the option to assign another user in the COVENET® Network to reach Your location and assist You. In such cases, such user will have access to Your location and profile photo to personally identify You. Wherever You have nominated or given consent, some or all of your Personal Data may be visible to Your Nominees. You may also opt to share Your information available on the Products or Services with Your Nominee and/or Your contacts through a third-party mobile application or website (for example through What's app, Facebook or Google) and in such cases Your information may be displayed and disclosed to public by You.

4.2 Third-parties of KaHa - We may employ our subsidiaries/Affiliates, third party entities and individuals to facilitate our Products or Services (e.g. maintenance, analysis, audit, marketing and development). Further, KaHa also provides certain Products & Services in association with its strategic and business partners (eg. OEMs etc.) and in accordance with the applicable laws of the land. Our third parties have limited access to your information to provide the products or services requested by You or to perform tasks on our behalf or as contractually agreed or as mandated by the applicable laws of the land and are obligated not to disclose it for other purposes. All of our approved third-party service providers go through a vetting process before being selected and are bound by all relevant data privacy laws and terms of confidentiality.

4.3 Third-party mobile applications – Where You have opted to link / integrate our Products or Services with another third-party product/service (for example, without limitation, Google Fit or Apple Health), then We will share relevant information with such third-party as may be required for such linkage/integration. The same shall also happen when you have voluntarily shared any information available on our product/service (such as calories count or number of steps completed) with another person on a third-party mobile application (such as WhatsApp).

4.4 Business transfers - Where KaHa is (or substantially all of KaHa's assets are) acquired, or if KaHa is reorganized, Personal Data would be one of the assets transferred to or acquired by a third party. If Your Personal Information will be transferred to a third party in this manner, KaHa will try to inform You of the same by posting on its website and/or this Privacy Policy or other means, so that You can delete Your registration/account with KaHa if You choose to do so. We recommend that You regularly check our website and this Privacy Policy for any updates.

4.5 Legal Requirement - There may be instances when we disclose Your information to comply with the law or respond to compulsory legal process or to verify or enforce compliance with the policies governing our services or to protect the rights, property, or safety of KaHa, or any of our respective affiliates, business partners, or customers. Please rest assured We will share Your information only after conducting a due diligence of the requirement and will only be sharing the relevant information.

5. **Use of Cookies Web Beacons, and Similar Technologies**

5.1 When you visit or interact with our sites, Products or Services, we or our Associated Parties may use cookies, web beacons, and other similar technologies for collecting and storing information to help provide you with a better, faster, and safer web experience.

5.2 The information collected by us or our Associated Parties may recognise a visitor as a unique user and may collect information such as how a visitor arrives at our Products or Services, what kind of browser a visitor is on, what operating system a visitor is using, a visitor's IP address and a visitor's click stream information and time stamp (for example, which pages they have viewed, the time the pages were accessed and the time spent per web page).

5.3 The use of cookies, web beacons and similar technologies by us on our Products or Services has different functions. They are either necessary for the functioning of our services, help us improve our performance, or serve to provide you with extra functionalities. They may also be used to deliver content that is more relevant to you and your interests, or to target advertising to you on or off our sites.

(a) Cookies – Small text files (typically made up of letters and numbers) placed in the memory of your browser or device when you visit a website or view a message. Cookies allow a website to recognize a particular device or browser. There are several types of cookies:

- Session cookies expire at the end of your browser session and allow us to link your actions during that particular browser session.
- Persistent cookies are stored on your device in between browser sessions, allowing us to remember your preferences or actions across multiple sites.
- First-party cookies are set by the site you are visiting
- Third-party cookies are set by a third party site separate from the site you are visiting.

Cookies can be disabled or removed by tools that are available in most commercial browsers. The preferences for each browser you use will need to be set separately and different browsers offer different functionality and options.

(b) Web beacons - Small graphic images (also known as "pixel tags" or "clear GIFs") may be included on our sites and services. Web beacons typically work in conjunction with cookies to profile each unique user and user behaviour.

(c) Similar technologies – Technologies that store information in your browser or device utilizing local shared objects or local storage, such as flash cookies, HTML 5 cookies, and other web application software methods. These technologies can operate across all of your browsers.

5.4 We offer certain features and services that are available only through the use of these technologies. You are always free to block, delete, or disable these technologies if your browser so permits. However, if you decline cookies or other similar technologies, you may not be able to take advantage of certain site features or services tools. For more information on how you can block, delete, or disable these technologies, please review your browser settings.

6. **Choices You have regarding Your Personal Information**

You have many choices on how we use Your information. You can modify any of Your information, at any time, by accessing the profile settings in the Product or Service and following instructions. You can always opt not to disclose information to KaHa, but keep in mind that You may not be able to utilize or optimally use some of the features available in Product or Service that You are using or have requested. You can also make choices about whether to receive promotional communications from us by following the unsubscribe instructions included in the communication. You can also uninstall the Application/Software and discontinue usage of any service at any time. In some Products or Services, You may be able to withdraw certain consents in the permissions settings of the Product or Service. Your mobile phone's settings also provides you with options to withdraw certain permissions. Please note that some information may remain in KaHa's private records even after the above. KaHa may use any aggregated data derived from or incorporating Your personal information after You uninstall/cease using the Software, but not in a manner that would identify You personally.

If you withdraw your consent to any or all use of your Personal Data, depending on the nature of your request, KaHa may not be in a position to continue to provide its Products and/or Services to you, or administer any contractual relationship in place, which in turn may also result in the termination of any agreements with KaHa, and your being in breach of your contractual obligations or undertakings. KaHa's legal rights and remedies in such event are expressly reserved.

7. **Retention & Security of Data**

KaHa retains Personal Data as may be required for business or legal purposes, and such purposes do vary according to the circumstances. However, KaHa will securely dispose of or anonymise Personal Data which it can reasonably determine is no longer needed. Please note, KaHa may need to retain some information for legal records and archival purposes.

The security of your personal data is of great importance to us. We have put in place reasonable physical, organisational and technical measures to safeguard the information we collect. However, please note that although we take reasonable steps to protect your information, no Product or Service, mobile application, website, internet transmission, computer system or wireless connection is completely secure. You should prevent unauthorized access to Your account and Your Personal Information by limiting access to Your phone and the Application.

8. **Links to Other Websites**

   The Application may contain links to other websites/applications that are owned and/or operated by third-parties. KaHa is not responsible for the privacy practices or the content of other websites or applications. Such websites/applications/content is subject to the terms of use, privacy policies and any additional guidelines prescribed by such third-parties. We recommend that you check the privacy policy and terms of use of each website/application you visit to better understand your rights and obligations especially when you are submitting any type of content on those third-party website/application. Please contact the owner or operator of such website/application if you have any concerns or questions.

9. **Changes to the Privacy Policy**

   We may update this Privacy Policy at any time to reflect changes in our practices and service offerings. If we modify this Privacy Policy, we will update the date on which the new Privacy Policy will be effective. We may notify you of any material changes in the way we treat your information by placing a prominent notice on our website/Application. You are bound by any changes to the Privacy Policy when You use the Application after such changes have been first posted.

10. **Contacting Us, Questions, Your Rights**

    If you have any questions about this Privacy Policy or any grievances, please reach out to us at the details given below. Certain statutory laws in jurisdictions provide You with certain rights. If You (a) would like to withdraw your consent to any use of your Personal Data as set out in this Privacy Policy; or (b) would like to obtain access and make corrections to your Personal Data records, please contact us as follows detailing your request and we will make all efforts to address them:

    - send an email to Customer Support at customer.support@coveiot.com (preferred)
    - Write to our Data Protection Officer at:
      Data Protection Officer
      KaHa Pte. Ltd.
      29, Media Circle, #05-14, Alice @Mediapolis, Singapore - 138565.

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